



CHAPTER clxxviii.

An Act to authorise the construction of new railways and works and the acquisition of lands by the Great Central Railway Company in connection with their undertaking the acquisition of additional lands and the execution of works by the Cheshire Lines Committee and the Manchester South Junction and Altrincham Railway Company respectively in connection with their respective undertakings the acquisition by the Great Central Railway Company of the undertakings of the Wigan Junction Railways Company and the Liverpool St. Helens and South Lancashire Railway Company the incorporation of a joint committee of the Great Central and London and North Western Railway Companies and for other purposes. A.D. 1905.

[4th August 1905.]

WHEREAS it is expedient that the Great Central Railway Company (hereinafter called "the Company") should be authorised to construct the new railways and works at Lincoln and Grimsby hereinafter described:

And whereas the Company own and work the undertaking known as the Cleethorpes Promenade Pier and have by virtue of powers conferred upon them in that behalf constructed a sea wall and laid out gardens adjacent to the said pier and to their railway terminus at Cleethorpes:

And whereas it is expedient that the Company should be authorised to construct and maintain the sea wall and marine lake at Cleethorpes hereinafter described and that the agreement between the Company and the Cleethorpes-with-Thrunscoe Urban

A.D. 1905. District Council with respect to the said sea wall and marine lake should be confirmed :

And whereas it is expedient that the Company should be authorised to acquire hold and use for the purposes of their undertaking the additional lands hereinafter described in the counties of Chester Lancaster Lincoln (parts of Lindsey) and York (west riding) :

And whereas it is expedient that the Cheshire Lines Committee representing jointly the Company the Great Northern Railway Company and the Midland Railway Company should be authorised to acquire the additional lands for the purposes of their undertaking and execute the works hereinafter described in the county of Lancaster :

And whereas it is expedient that the Manchester South Junction and Altrincham Railway Company representing jointly the Company and the London and North Western Railway Company should be authorised to acquire the additional lands hereinafter described and to hold and use the same for the purposes of their undertaking :

And whereas it is expedient that the times limited by Acts relating to the undertakings of the Company and the Cheshire Lines Committee for the compulsory purchase of lands and the completion of railways should be extended as in this Act provided and that further powers should be conferred upon the Cheshire Lines Committee and the Great Central and Midland Joint Committee with respect to the sale and retention of superfluous lands :

And whereas the Wigan Junction Railways Company (in this Act called "the Wigan Company") were incorporated by the Wigan Junction Railways Act 1874 and under the powers of that Act and subsequent Acts the Wigan Company have constructed railways extending from Glazebrook to Wigan in the county of Lancaster :

And whereas the Company have in pursuance of powers conferred upon them by the Wigan Junction Railways Act 1878 and the Manchester Sheffield and Lincolnshire Railway (New Works) Act 1881 subscribed from time to time sums towards the undertaking of the Wigan Company and the Company are now in respect of such sums the holders of three and a quarter per cent. preference shares of the nominal value of two hundred and twenty-five thousand pounds and ordinary shares of the

nominal value of one hundred and twenty-seven thousand seven hundred and eighty pounds in the undertaking of the Wigan Company : A.D. 1905.

And whereas it is estimated that the sum of twenty-five thousand pounds is required to pay the debts of the Wigan Company due on capital account and to complete and fully equip the railways of the Wigan Company :

And whereas the undertaking of the Wigan Company is worked by the Company and it has been agreed between the Wigan Company and the Company and it is expedient and would be for public advantage that the undertaking of the Wigan Company should be vested in the Company as provided by this Act :

And whereas the schedule to this Act contains a statement of particulars of the capital issued and raised and of the moneys borrowed on debentures by the Wigan Company :

And whereas by the St. Helens and Wigan Junction Railway Act 1885 the St. Helens and Wigan Junction Railway Company were incorporated and were empowered by that Act and the St. Helens and Wigan Junction Railway Act 1886 to construct certain railways from St. Helens to Lowton and from St. Helens to Liverpool :

And whereas by the St. Helens and Wigan Junction Railway Act 1889 the name of the St. Helens and Wigan Junction Railway Company was changed to the Liverpool St. Helens and South Lancashire Railway Company (in this Act called "the St. Helens Company") :

And whereas the Company have in pursuance of the powers conferred upon them by the said St. Helens and Wigan Junction Railway Act 1889 and the Manchester Sheffield and Lincolnshire Railway (Various Powers) Act 1891 subscribed from time to time sums towards the undertaking of the St. Helens Company and the Company are now in respect of such sums the holders of four per cent. guaranteed shares of the nominal value of one hundred thousand pounds and four per cent. preference shares of the nominal value of twenty thousand pounds in the undertaking of the St. Helens Company :

And whereas the debts of the St. Helens Company secured by Lloyds bonds and otherwise are estimated to amount to seventy thousand pounds :

And whereas the undertaking of the St. Helens Company is worked by the Company and it is expedient and would be for

A.D. 1905. — public advantage that the undertaking of the St. Helens Company should be transferred to and vested in the Company as provided by this Act:

And whereas the schedule to this Act contains particulars of the capital issued and raised and of the moneys borrowed on debentures by the St. Helens Company:

And whereas it is expedient that the Company should be authorised to create and issue a further amount of second debenture stock and to apply and issue preferred and deferred ordinary stock of the Company already created in order to provide for the purchase and improvement of the undertakings of the Wigan Junction and St. Helens Companies:

And whereas the Company and the London and North Western Railway Company are jointly interested as owners and managers of the undertakings known as the Manchester South Junction and Altrincham Railway the Oldham Ashton and Guide Bridge Railway the London Road Station at Manchester and the Stalybridge Station and the said undertakings are now maintained and managed by separate boards and committees consisting of representatives of the Company and the London and North Western Railway Company:

And whereas it is expedient that one joint committee representing the Company and the London and North Western Railway Company should be incorporated and authorised to maintain and manage the said undertakings on behalf of the Company and the London and North Western Railway Company:

And whereas it is expedient that further powers as in this Act mentioned should be conferred upon the Company:

And whereas the Humber Commercial Railway and Dock Company (hereinafter called "the Humber Company") were incorporated by the Humber Commercial Railway and Dock Act 1901 (hereinafter referred to as "the Humber Dock Act 1901") and were authorised to raise by the creation and issue of shares or stock a capital of one million pounds for the construction of a dock and works at Great Grimsby and railways connecting the same with the railways of the Company:

And whereas by the Humber Commercial Railway and Dock Act 1904 (hereinafter referred to as "the Humber Dock Act 1904") the Humber Company were authorised to abandon the dock and works at Great Grimsby authorised by the Humber

Dock Act 1901 and to construct in substitution therefor at A.D. 1905.
Immingham a dock jetties and works together with railways
connecting the same with the railways of the Company and by
the Humber Dock Act 1904 the Humber Dock Company were
authorised to raise additional capital by the issue of shares or
stock to the amount of three hundred thousand pounds :

And whereas by section 83 of the Humber Dock Act 1901
the Humber Company are authorised to pay interest out of
capital at the rate of three pounds per centum per annum until
the ninth day of August nineteen hundred and eleven but it is
provided by the said section that no interest shall begin to accrue
until two thirds at least of the said capital of one million pounds
have been actually issued and accepted :

And whereas by section 40 of the Humber Dock Act 1904
the Humber Company are authorised to pay interest out of the
additional capital authorised to be raised by that Act at the rate
of three pounds per centum per annum until the twenty-second
day of July nineteen hundred and eleven but it is provided by
the said section that no interest shall begin to accrue until two
thirds at least of the said capital of three hundred thousand
pounds have been actually issued and accepted :

And whereas by section 27 of the Humber Dock Act 1901
the Humber Company are authorised to raise any sums not
exceeding three hundred thousand pounds of the said capital of
one million pounds by the creation and issue of special guaranteed
redeemable shares or stock subject to the terms and conditions
prescribed by an agreement between the Company and the pro-
moters of the Bill for the Humber Dock Act 1901 scheduled to
and confirmed by that Act and a further agreement between the
Humber Dock Company and the Company scheduled to and
confirmed by the Humber Dock Act 1904 :

And whereas it is provided by the said last-mentioned
agreement that upon the completion and opening for traffic of
the dock and works authorised by the Humber Dock Act 1904
the Humber Company will grant and the Company will accept a
lease of the said dock and works and the Company will set apart
out of the receipts from the said dock undertaking certain terminal
charges on all coal coke and similar mineral traffic passing into
the said dock in order to guarantee a dividend of four pounds
per centum per annum on the said special guaranteed redeemable
shares or stock :

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And whereas the authorised works of the Humber Company consist in part of jetties which can be completed by an expenditure of capital not exceeding three hundred thousand pounds and can be used for mineral and merchandise traffic during the construction of the remainder of the Humber Company's works:

And whereas in accordance with the provisions in that behalf contained in section 27 of the Humber Dock Act 1901 the proprietors of the Company have confirmed the said agreements and the Company have signified their willingness to carry the said agreements into effect on condition that the Humber Company will exercise the power conferred upon them by the Humber Dock Act 1901 of paying interest out of capital on the said three hundred thousand pounds special guaranteed redeemable shares or stock at the rate of three per centum per annum but the Humber Company cannot pay interest out of capital after having issued only three hundred thousand pounds of their authorised capital unless the further powers in this Act contained are conferred upon them:

And whereas it is expedient that the provisions of the Humber Dock Acts 1901 and 1904 with respect to the payment of interest out of capital should be repealed re-enacted and consolidated:

And whereas it is expedient that the Humber Company should be authorised to put in force their compulsory powers of taking lands after the sum of three hundred thousand pounds of capital has been subscribed:

And whereas plans and sections showing the lines and levels of the railways and works authorised by this Act and also books of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes of the works authorised by this Act and plans of the other lands by this Act authorised to be taken compulsorily with books of reference thereto were duly deposited with the respective clerks of the peace for the counties of Lancaster Lincoln (parts of Lindsey) and Lincoln (parts of Kesteven) and are hereinafter respectively referred to as the deposited plans sections and books of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

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PART I.

PRELIMINARY.

1. This Act may be cited as the Great Central Railway Act 1905. Short title.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—New Works and Additional Lands for Great Central Railway Company.

Part III.—New Works and Additional Lands for Cheshire Lines Committee.

Part IV.—Additional Lands for Manchester South Junction and Altrincham Railway Company.

Part V.—General Provisions relating to Works and Lands.

Part VI.—Extensions of Time.

Part VII.—Transfer of Wigan Junction Railways and Liverpool St. Helens and South Lancashire Railway.

Part VIII.—Great Central and London and North Western Railways Joint Committee.

Part IX.—Miscellaneous.

3. The Lands Clauses Acts ;

The Railways Clauses Consolidation Act 1845 ;

Part I. (relating to the construction of a railway)
Part II. (relating to extension of time) and Part V. (relating to amalgamation) of the Railways Clauses Act 1863 and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 ;

Incorporation of Acts.

are (except where expressly varied by this Act) incorporated with and form part of this Act:

Provided that for the purposes of the said Acts the dock works and road works by this Act authorised shall be deemed to be parts of a railway.

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Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act the expression—

“The railways” and “the railway” mean the new railways authorised by this Act ;

“The Company” means the Great Central Railway Company ;

“The North Western Company” means the London and North Western Railway Company ;

“The Oldham Company” means the Oldham Ashton and Guide Bridge Railway Company ;

“The South Junction Company” means the Manchester South Junction and Altrincham Railway Company ;

“The St. Helens Company” means the Liverpool St. Helens and South Lancashire Railway Company ;

“The Wigan Company” means the Wigan Junction Railways Company ;

“High-water mark” and “low-water mark” mean respectively high-water mark and low-water mark of ordinary spring tides Admiralty datum ;

“The Act of 1898” means the Great Central Railway Act 1898 ;

“The Act of 1900” means the Great Central Railway Act 1900 ;

“The Act of 1901” means the Great Central Railway Act 1901 ;

“The Act of 1902” means the Great Central Railway Act 1902 ;

“The Act of 1903” means the Great Central Railway Act 1903 ;

“The Act of 1904” means the Great Central Railway Act 1904 ;

“The Humber Dock Act 1901” means the Humber Commercial Railway and Dock Act 1901 ;

“The Humber Dock Act 1904” means the Humber Commercial Railway and Dock Act 1904 ;

“The Humber Dock Acts” means the Humber Dock Act 1901 and the Humber Dock Act 1904 ;

“The Humber Company” means the company incorporated by the Humber Dock Act 1901.

PART II.

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NEW WORKS AND ADDITIONAL LANDS FOR GREAT CENTRAL
RAILWAY COMPANY.

5. Subject to the provisions of this Act the Company may make and maintain in the lines or situation and according to the levels and within the limits of deviation shown on the deposited plans and sections the railways widening of railways dock road and works hereinafter described with all proper stations sidings junctions approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes or for the general purposes of their undertaking The railways and works hereinbefore referred to and authorised by this Part of this Act are—

New rail-
ways and
works.

In the county of Lincoln—

A Railway No. 1 4 furlongs 1·70 chains in length wholly in the city and county borough of Lincoln commencing at a point in the west bank of the River Witham four and a half chains or thereabouts from the middle of the bridge carrying the Great Northern Railway over the said river measured along the west bank thereof in a southerly direction and terminating by a junction with the Great Northern Railway at a point on that railway distant nine chains or thereabouts from the middle of Holmes West Junction signal box measured along that railway in an easterly direction :

A Railway No. 2 2 furlongs 6·50 chains in length commencing in the city and county borough of Lincoln in the parts of Lindsey by a junction with the Midland Railway Company's goods yard sidings at a point on the northernmost siding one and three-quarter chains or thereabouts from the middle of the bridge carrying the said sidings over the River Witham measured in a westerly direction and terminating by a junction with Railway No. 1 in the field numbered 108 on the Ordnance map of the county of Lincoln scale $\frac{1}{2500}$ sheet No. LXX. 6 dated 1889 at a point in that field distant one and a half chains or thereabouts from the southern boundary thereof measured in a northerly direction at right angles thereto and three and a half chains from the eastern boundary thereof measured in a north-westerly direction at right angles thereto :

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A dock wholly in the city and county borough of Lincoln commencing at a point in the bed of the River Witham half a chain or thereabouts from the west bank measured in an easterly direction and at right angles thereto and three and a half chains or thereabouts from the middle of the swing bridge carrying the Great Northern Railway over the River Witham measured in a southerly direction and at right angles thereto and terminating at a point two and three quarter chains or thereabouts from the west bank of the River Witham measured in a westerly direction and at right angles thereto and one and a half chains or thereabouts from the southern wall of the Great Northern Railway Company's engine shed measured in a southerly direction and at right angles thereto:

A road wholly in the city and county borough of Lincoln commencing at the west end of St. Mark's Place and proceeding in a north-westerly direction and terminating by a junction with the existing occupation road No. 121 on the Ordnance map of Lincoln scale $\frac{1}{2500}$ sheet No. LXX. 7 dated 1889 at a point on that road four chains or thereabouts from the middle of Holmes Bridge measured along that road in a westerly direction:

A widening or doubling 4.70 chains in length on the south side of the railway connecting the Great Central Railway with the Great Northern Railway at Durham Ox level crossing wholly in the city and county borough of Lincoln commencing at a point on the Great Central Railway distant three chains or thereabouts eastward from the centre line of the road over Durham Ox level crossing and terminating at a point on the Great Northern Railway distant two chains or thereabouts westward from the said centre line:

A railway No. 3 1 furlong 1 chain in length wholly in the borough of Great Grimsby commencing by a junction with the sidings of the Company on the north side of Corporation Road one and a half chains or thereabouts from the north side of the said road measured in a northerly direction and at right angles thereto and three and a half chains or thereabouts from the west side of Alexandra Dock measured in a westerly direction and at right angles thereto and terminating at a point eight chains or thereabouts from the south side of Corporation

Road measured in a southerly direction and at right angles thereto and six and a half chains from the east side of West Marsh Lane measured in an easterly direction and at right angles thereto. A.D. 1905.

6. In constructing the railways widening of railway dock and road by this Act authorised the Company may deviate from the lines thereof as shown upon the deposited plans to any extent not exceeding the limits of deviation shown upon those plans and in constructing the said dock and road the Company may deviate from the levels thereof as shown upon the deposited sections to any extent not exceeding five feet upwards and five feet downwards. Limits of deviation for railways dock and road.

7. The following provisions for the protection of the Great Northern Railway Company (hereinafter in this section called "the Great Northern Company") shall unless with the consent of the Great Northern Company in writing under their common seal apply and have effect:— For protection of Great Northern Railway Company.

(1) The expression "Great Northern property" where used in this section shall include any land railway siding building work or convenience belonging to the Great Northern Company :

(2)—(A) The Company shall not enter upon take use or interfere with any Great Northern property except so far as shall be necessary for the purpose of making and maintaining the railways and works in the city and county borough of Lincoln by this Act authorised as the same are according to this Act to be constructed on Great Northern property ;

(B) The Company shall not purchase or take any Great Northern property but the Company may purchase and take and the Great Northern Company may and shall sell and grant according to their estate and interest in and subject to all easements rights and covenants affecting the same an easement or right of constructing and maintaining the railways and works by this Act authorised so far as the same are according to this Act to be constructed on Great Northern property ;

(c) The consideration to be paid for any easement or right to be acquired by the Company under the preceding subsection shall in case of dispute be determined

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in manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement and shall include full compensation in respect of all damage loss or inconvenience which the Great Northern Company may suffer or sustain by or by reason of the exercise by the Company of the powers of this Act or of any Act incorporated therewith ;

- (D) The junction of Railway No. 1 with the Great Northern Railway shall be effected at the point shown on the deposited plans or at such other point not exceeding one hundred yards therefrom as shall be agreed on between the engineer of the Company and the engineer of the Great Northern Company (in this section called "the engineer") or in case of difference between them shall be settled by an arbitrator to be appointed as hereinafter provided ;
- (E) So much of the said junctions and the signalling works in connection therewith as affects the running lines of the Great Northern Railway shall be constructed by the Great Northern Company at the expense of the Company ;
- (F) The Company shall not construct any works whether temporary or permanent on the property of the Great Northern Company except in accordance with the provisions of this section and under the superintendence and to the reasonable satisfaction of the engineer and of such dimensions quality and strength of material and design and method of construction and according to such plans sections and specifications as shall have been previously submitted to and approved by the engineer or in case of difference between him and the engineer of the Company by an arbitrator to be appointed as hereinafter provided ;
- (G) The Great Northern Company shall maintain at the expense of the Company so much of the said junction of Railway No. 1 with the Great Northern Railway and the signalling works in connection therewith as may affect the running lines of the said last-mentioned railway ;
- (H) The Company shall not in the execution maintenance or repair of any of their works remove or disturb any

of the rails of any railway or siding belonging to the Great Northern Company or obstruct hinder or interfere with the free uninterrupted and safe user of any such railway siding or work or any traffic thereon and shall during the execution or repair of any of their works execute all such temporary works as the engineer may consider necessary for the purpose of avoiding risk to the railways or works of the Great Northern Company or interruption to the traffic thereon ;

- (I) The Company shall bear and on demand pay to the Great Northern Company the reasonable expense of the employment by the Great Northern Company during the execution or repair of any work to be executed under the powers of this Act affecting any Great Northern property of such inspectors watchmen and signalmen to be appointed by the Great Northern Company as may be necessary for watching and signalling the same with reference to and during the execution or repair of any such work of the Company and for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employment of the Company or of their contractors with reference thereto or otherwise and shall also bear and on demand pay the costs of the engineer in connection with the said works ;
- (J) If by reason of the construction or working of the railways or works by this Act authorised it shall become necessary to add or alter any signal cabins signal posts signals or other similar works on any railway belonging to the Great Northern Company the Great Northern Company may make such additions and alterations and the reasonable expense of such additions and alterations shall be repaid by the Company to the Great Northern Company on demand and the cost of maintaining and working any additional signal cabins signal posts signals or other similar works and a fair proportion of the cost of maintaining and working any altered signal cabins signal posts signals or other similar works shall at the end of every half year be repaid by the Company to the Great Northern Company ;

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- (K) The Company shall bear and on demand pay to the Great Northern Company the expenses of any works or precautions which are necessary for the support or continuous working of any railway siding or work belonging to the Great Northern Company by reason or in consequence of the construction or failure of the Company's works ;
- (L) If by reason of the execution or failure of any of the works of the Company by this Act authorised or of any act or omission of the Company or of their contractors or of any person in the employment of the Company or of their contractors or otherwise any railway siding building work or convenience belonging to the Great Northern Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the Great Northern Company may make good the same and the reasonable expenses thereof as certified by the engineer shall be repaid to the Great Northern Company by the Company on demand and the Company shall indemnify the Great Northern Company against all losses which the Great Northern Company may sustain and shall pay all costs charges and expenses which the Great Northern Company may be put to or incur by reason of the execution or failure of any of the works of the Company by this Act authorised or any act or omission of the Company or their contractors or any person in the employment of the Company or their contractors or otherwise ;
- (M) If at any time hereafter the Great Northern Company shall be desirous of extending widening or altering any of the railways or works affected by the railways or works by this Act authorised the Company shall give to the Great Northern Company all proper and reasonable facilities for that purpose ;
- (N) The Company and the Great Northern Company may agree in writing under seal upon any variation of or alteration in the works in this section provided for or in the manner in which the same shall be executed ;
- (O) If any difference shall arise between the Company and the Great Northern Company under the preceding

subsections the same shall be determined unless otherwise agreed by an engineer to be appointed by the Board of Trade on the application of either party after notice to the other. A.D. 1905.

8. The road authorised by and described in the section of this Act of which the marginal note is "New railways and works" shall be constructed by the Company in the manner shown upon the plan signed in duplicate by the Right Honourable Arthur Baron Stanmore the Chairman of the Select Committee of the House of Lords to whom the Bill for this Act was referred of which plan one copy has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments in the House of Lords so as to merge in and form part of St. Mark's Lane and shall be constructed and paved and channelled to the reasonable satisfaction of the mayor aldermen and citizens of the city of Lincoln (hereinafter called "the corporation") and shall form one road with St. Mark's Lane and shall be dedicated to the public use and so much of the said road as is shown on the said plan and scored yellow thereon shall be for ever maintained and kept in repair by the Company at their own expense and if at any time and as often as the Company shall fail to keep the said portion of road in proper and sufficient repair the corporation may execute and do such works as may be necessary to maintain the said portion of road in proper and sufficient repair and may recover the costs of so doing from the Company in any court of competent jurisdiction The remainder of the said road and Brayford Wharf shall be maintained by the corporation.

Road to be constructed by Company in Lincoln to form part of St. Mark's Lane.

9. For the protection of the commissioners of sewers for the county of Lincoln (in this section referred to as "the commissioners") the following provisions shall unless otherwise agreed between the Company and the commissioners in writing apply and have effect (that is to say):—

For protection of Lincolnshire Commissioners of Sewers.

- (1) In constructing the bridges over the River Witham by this Act authorised the Company shall not diminish the span or headway thereof as shown upon the deposited plans and sections:
- (2) The Company shall construct the said bridges according to plans sections and specifications to be previously submitted to and approved in writing by the engineer

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of the commissioners and such approval shall not be unreasonably withheld and if the engineer of the commissioners shall fail to approve or disapprove the said plans sections and specifications within one month after the same have been so submitted to him they shall be deemed to have been approved :

(3) Before commencing the excavation of the dock by this Act authorised the Company shall in order to facilitate the formation of the dock construct and during the construction of the dock maintain a cofferdam on the banks of the River Witham in a position to be approved by the engineer of the commissioners and before opening the dock for traffic draw the piles forming the said cofferdam or cut off the said piles at a level to be approved by the engineer of the commissioners and the Company shall clear away from the River Witham all materials used or deposited in the construction of the works and dredge the said river opposite the proposed dock entrance to the depth of the adjoining waterway of the said river :

(4) If any difference shall arise between the Company and the commissioners or their respective engineers with respect to the reasonableness of any of the conditions imposed by the commissioners or their engineer under this section such difference shall be referred to and determined by an engineer to be appointed by the parties or in case of difference to be appointed on the application of either party by the Board of Trade.

Diversion of
footpath.

10. Subject to the provisions of this Act the Company may in the construction of the works by this Act authorised stop up divert and alter the footpath hereinafter mentioned to the extent and in the manner shown upon the deposited plans (that is to say) :—

In the county of Lincoln—

In the parishes of St. Mark and St. Mary-le-Wigford with Holmes Common in the city of Lincoln the Company may stop up and divert the footpath on the western side of the River Witham commencing at a point about 2·5 chains south of the centre line of the Great Northern Railway where that railway crosses

the River Witham and terminating at the point where the said footpath joins the road at Holmes Bridge providing in lieu thereof a footbridge crossing the said River Witham at the commencement of the portion of footpath hereinbefore described. A.D. 1905.

11. Subject to the provisions in the Railways Clauses Consolidation Act 1845 and in Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may carry the widened or doubled railway at Durham Ox with a double line only across and on the level of the road numbered 1 on the deposited plans in the parish of St. Mark in the city of Lincoln and subject to the like provisions the Company may carry Railway No. 3 with a single line only whilst the said Railway No. 3 shall consist of a single line and afterwards with a double line only across and on the level of the public road numbered 2 on the deposited plans in the parish of Great Grimsby. Power to cross certain roads on level.

12. Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not construct the portion of the widening or doubling on the south side of the railway connecting the Great Central Railway with the Great Northern Railway at Durham Ox level crossing by this Act authorised which is intended to be constructed to the west of the black line marked A B on the plan signed by Alexander Ross on behalf of the Great Northern Railway Company and by C. A. Rowlandson on behalf of the Company but such portion of the said widening or doubling shall be constructed by the Great Northern Railway Company and so much of the said widening or doubling (including the existing line) as lies to the west of the said line shall be the railway of the Great Northern Railway Company and so much of the said widening or doubling (including the existing line) as lies to the east of the said line shall be the property of the Company. Durham Ox level crossing.

The Company shall pay to the Great Northern Railway Company one half the cost of constructing the widening or doubling to be constructed by them and the Great Northern Railway Company shall pay to the Company one half the cost of constructing the widening or doubling to be constructed by them.

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Power to
Lancashire
Derbyshire
and East
Coast Rail-
way Com-
pany to run
over and use
portion of
Company's
railway.

13. The Lancashire Derbyshire and East Coast Railway Company (in this section called "the Derbyshire Company") shall have the right to run over and use with their engines waggons and trucks officers and servants for the purpose of any coal and coke traffic from collieries on or near to or beyond the railways of the Derbyshire Company so much of the Durham Ox junction railway at Lincoln connecting the Great Northern Railway with the Market Rasen branch of the Company as is by this Act reserved to the Company and the widening or doubling thereof by this Act authorised. Provided that the Derbyshire Company shall in the exercise of the running powers by this section conferred upon them have the like powers and privileges and be subject to the like terms obligations conditions and restrictions as though the said portion of the Durham Ox junction railway and the said widening and doubling thereof had been part of the railways mentioned and comprised in the first clause of the agreement dated the twentieth day of July one thousand nine hundred and one contained in the Sixth Schedule to the Act of 1904.

For protec-
tion of cor-
poration of
Grimsby.

14. For the protection of the mayor aldermen and burgesses of the county borough of Grimsby (in this section called "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation have effect (that is to say) :—

- (1) All works incident to the construction of Railway No. 3 across Corporation Road on the level and of the raising of that road as shown on the deposited plans shall be constructed by the Company in such manner and according to plans sections and specifications to be first submitted to and approved by the surveyor of the corporation whose approval shall not be unreasonably withheld :
- (2) All such works shall be carried on uninterruptedly when commenced and shall be completed with all reasonable despatch and shall be constructed and maintained by the Company so that the traffic on Corporation Road shall not except as herein provided be in any way obstructed impeded or interfered with and such main-tenance shall be effected under the superintendence and to the reasonable satisfaction of the said surveyor ;

- (3) The user of the level crossing by the Company shall be limited to the passage thereover daily of two trains (one either way) between the hours of nine and eleven thirty in the forenoon and two trains (one either way) between the hours of two and four thirty in the afternoon and two trains (one either way) between the hours of six and nine in the evening and of such number of trains (either way) between the hours of eleven in the evening and five in the morning as the traffic of the Company may require. Provided that in no case shall the period occupied in the passing of any train over the level crossing exceed five minutes: A.D. 1905.
- (4) No engine carriage waggon or truck shall be allowed to stand on the level crossing:
- (5) Any question or difference which may arise between the Company and the corporation under the provisions of this section shall be referred to and determined by an arbitrator to be appointed by the Company and the corporation or in case of difference by the Board of Trade on the application of either party.

15. The rights powers and privileges conferred upon the Great Northern Railway Company by section 14 of the Great Northern Railway (Communication with Manchester Sheffield and Lincolnshire Railway) Act 1851 and by sections 31 and 33 of the West Riding and Grimsby Railway (Transfer) Act 1866 with respect to the docks of the Company at Grimsby and the railways therein and the works and conveniences connected therewith and the appurtenances thereto shall extend and apply to Railway No. 3 by this Act authorised and the said enactments and the order of the Railway and Canal Commissioners' Court dated the tenth day of August one thousand nine hundred and made in a matter in which the Great Northern Railway Company were applicants and the Company were defendants and the agreement scheduled thereto shall be read and construed accordingly. Extending running powers of Great Northern Railway Company to Railway No. 3.

16. The quantity of land to be taken by the Company by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation Act 1845 shall not exceed five acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken. Land for extraordinary purposes.

A.D. 1905.

Power to
alter steps
areas cellars
&c.

17. The Company may within the limits of deviation defined on the deposited plans for the purposes of and in connection with the construction of the road by this Act authorised raise sink or otherwise alter or cause to be altered the position of any steps areas cellars cellar flaps gratings and fencings and may remove all other obstructions so as the same be done with as little delay and inconvenience as the circumstances of the case will admit and the Company shall make reasonable compensation to any person who suffers damage by such alteration.

Tolls rates
and charges
on new rail-
ways.

18. The new railways authorised by this Act shall for the purposes of tolls rates and charges and for all other purposes whatsoever be deemed to be part of the Company's undertaking.

Marine lake
at Cleethorpes.

19. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the sea wall and marine lake hereinafter described and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose (that is to say):—

In the county of Lincoln (parts of Lindsey)—

A marine lake situated wholly in the urban district of Cleethorpes-with-Thrunscote and in the bed of the sea adjoining the said urban district to be formed by the construction of a sea wall commencing at a point one and a half chains or thereabouts north of the Cleethorpes pier measured at right angles thereto and two chains or thereabouts east of the eastern face of the existing sea wall measured at right angles thereto extending into the foreshore and bed of the sea for a distance of fourteen and a half chains or thereabouts and terminating at a point on the said existing sea wall twenty-eight chains or thereabouts from the southern side of the said pier measured in a southerly direction;

together with all necessary or proper footways carriageways approaches steps slipways embankments walls groynes locks gates sluices culverts jetties landing places beacons buoys lights toll houses warehouses machinery shelters waiting refreshment and concert rooms works appliances and conveniences.

Marine lake
included in
urban dis-
trict of Cleethorpes.

20. So much of the sea wall and marine lake by this Act authorised as is to be made and constructed in and upon the foreshore and bed of the sea and is not included in any parish

shall from and after the completion of the said sea wall and marine lake be included for all purposes in the parish of Cleethorpes and urban district of Cleethorpes-with-Thrunscoe. A.D. 1905.

21. In constructing the said sea wall and marine lake the Company may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Limits of deviation in construction of sea wall.

22.—(1) The Company shall not under the powers of this Part of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consent or approval.

Works below high-water mark not to be commenced without consent of Board of Trade.

(2) If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Company and the amount of such cost and charge shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

23. If at any time the Board of Trade deem it expedient for the purposes of this Part of this Act to order a survey and examination of a work constructed by the Company on in over or across tidal lands or tidal water or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of works by Board of Trade.

A.D. 1905.

Lights on
works during
construction.

24. The Company shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Permanent
lights on
works.

25. The Company shall at the outer extremity of their works below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of the Hull Trinity House shall from time to time direct.

If the Company fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Provision
against
danger to
navigation.

26. In case of injury to or destruction or decay of the pier or works or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of the Hull Trinity House and shall apply to that corporation for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Saving rights
of Trinity
House Dept-
ford Strond.

27. Nothing in this Act shall prejudice or affect the rights and privileges of the Corporation of Trinity House of Deptford Strond.

Abatement
of work
abandoned or
decayed.

28. If a work constructed by the Company under the powers of this Part of this Act in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade or the Humber Conservancy Commissioners may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the

Company to the Crown and be recoverable as a Crown debt or summarily or if incurred by the Humber Conservancy Commissioners shall be a debt due to the said commissioners and be recoverable summarily. A.D. 1905.

29. Every person who wilfully obstructs any person acting under the authority of the Company in setting out the lines of the sea wall and marine lake authorised by this Act or who pulls up or removes any poles or stakes driven into the ground for the purposes of setting out the lines of such works or destroys such works or any part thereof shall without prejudice to any other proceeding or penalty for every such offence be liable to a penalty not exceeding five pounds to be recovered summarily. Penalty for obstructing works.

30. For the protection of the Humber Conservancy Commissioners (in this section referred to as "the commissioners") the following provisions shall have effect (that is to say):— For protection of Humber Conservancy Commissioners.

(1) Before commencing the construction of any of the works by this Act authorised to be constructed on the fore-shore or bed of the Humber plans sections and specifications showing the mode of construction thereof shall be furnished by the Company to the clerk of the commissioners and the approval of the commissioners to such plans sections and specifications or in case of difference the approval of the arbitrator to be appointed as hereinafter provided shall in each case be obtained by the Company before commencing the work and all such works shall be executed to the reasonable satisfaction of an engineer to be appointed by the commissioners :

(2) All temporary structures in the Humber which may be necessary to enable the works by this Part of this Act authorised to be constructed shall be constructed to the reasonable satisfaction in all respects of the engineer for the time being of the commissioners in accordance with plans to be submitted to and approved by the commissioners or in case of difference approved by an arbitrator to be appointed as hereinafter provided before the commencement of any such temporary structures and so as not to interfere more than may be necessary with the navigation of or the traffic on the Humber and after the purpose for which such

A.D. 1905.

temporary structures were constructed has been accomplished the Company shall with all despatch or after fourteen days' notice in writing thereafter from the commissioners so to do remove such temporary structures or any materials for the same which may have been placed in the Humber by the Company and on their failing to do so the commissioners may remove the same charging the Company with the expense of so doing and the Company shall forthwith repay to the commissioners all expenses so incurred :

- (3) In the event of the commissioners omitting to express their disapproval of any plans sections or specifications within fourteen days after the same shall have been furnished to the commissioners in pursuance of this section the commissioners shall be deemed to have approved the same :
- (4) In the event of any question or difference arising between the commissioners and the Company under any of the provisions of this section such question or difference shall be referred to an engineer to be appointed as arbitrator by the Board of Trade on the application of the Company or of the commissioners :
- (5) Nothing contained in this Act shall prejudice or alter or be deemed to prejudice or alter any of the provisions of the Humber Conservancy Acts 1852 to 1899 nor any of them or any title of the commissioners in to or over any lands or foreshore held or acquired by them under the said Acts or any of them or under any lease or agreement made under the powers thereof or confirmed thereby or any other of the rights powers privileges or authorities of the commissioners.

Charges for
admission to
and use of
marine lake.

31. The Company may demand and take in respect of the admission to and use of the sea wall and marine lake authorised by this Act any tolls and charges not exceeding the following sums (that is to say) :—

For the use of the marine lake for boating for each hour or part of an hour—

Every person over ten years of age the sum of 6d.

Every person under ten years of age the sum of 3d.

For admission to the sea wall for the purpose of walking for exercise pleasure or otherwise— A.D. 1905.

For every person the sum of - - - 2d.

For every perambulator cycle or bath chair (including the person in charge) taken on the sea wall for each time - - - 4d.

For every dog taken on the sea wall for each time 1d.

For every passenger or other person landing or embarking on or from the sea wall from or on any boat or vessel on the sea for each and every time - - - 4d.

Provided always that the Company may confer vary or extinguish exemption from and enter into compositions with any person for the payment of any tolls or charges authorised to be taken under this section but so that no undue preference be in any case given to any person over any other person.

32. For the protection and benefit of the Cleethorpes Urban District Council (in this section called "the council") the following provisions shall have effect unless otherwise agreed in writing between the Company and the council (that is to say):— For protection of Cleethorpes Urban District Council.

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not stop up or interfere with Fisherman's Road and shall before stopping up Sea Road construct a diverted road in accordance with plans and sections to be approved by the council giving a convenient access from the promenade to the beach and dedicate the same to the public as a highway :

(2) If the Company shall allow watermen to ply for hire within the said marine lake they shall choose such watermen up to the number of twenty from amongst the boatmen licensed by the council under section 77 of the Cleethorpes Improvement Act 1902 All boatmen plying for hire shall be bound to comply with the regulations and directions of the Company No boatman shall ply for hire within the marine lake on Sunday.

33. Whereas the construction of the sea wall and marine lake by this Act authorised in the urban district of Cleethorpes will tend to the improvement of the district and will lessen the Contribution by Cleethorpes Urban District

A.D. 1905. amount which the Cleethorpes Urban District Council (hereinafter
 Council to called "the council") would have had to expend for that purpose
 Marine Lake Be it therefore enacted as follows :—
 and limita-
 tion of
 rating.

(1) If and so soon as the Company have completed the construction of the said sea wall and marine lake to the reasonable satisfaction of the council then provided such marine lake is thereafter maintained by the Company for the purposes of public recreation to the reasonable satisfaction of the council the council shall for a period extending from the opening to the public of the marine lake until the expiration of a period of twenty-five years thereafter or until such earlier time as the revenue from the sea wall and marine lake after allowing a reasonable sum for the maintenance thereof shall amount to the sum of eight hundred pounds per annum being four per centum on the estimated cost of the said sea wall and marine lake pay to the Company in half-yearly payments out of the district fund and general district rate the sum of one hundred and fifty pounds in each year and in addition such sum if any as the Company shall be called upon to pay in respect of the general district rate upon the said sea wall and marine lake Provided that the Company shall not reduce the tolls and charges for admission to the said sea wall and marine lake for the purpose of reducing the said revenue below the said sum of eight hundred pounds per annum :

(2) The Company shall so long as the council pay to the Company any sum under the provisions of this section submit to the council on or before the twenty-fifth day of March in each year an annual statement of the receipts and expenditure in connection with the said sea wall and marine lake made up to the thirty-first day of December then next preceding :

(3) Any question or difference which may arise between the Company and the council under the provisions of this section shall be referred to and determined by an arbitrator to be appointed by the Company and the council or in case of difference by the Board of Trade on the application of either party.

34. Subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway the site and soil of the portions of the footpath diverted stopped up or discontinued by the Company under the authority of this Act and the fee simple and inheritance thereof shall if the Company are or if and when under the powers of this Act they shall become the owners of the land on both sides thereof be wholly and absolutely vested in the Company and they may appropriate the same to the purposes of their undertaking.

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As to vesting of site and soil of portions of footpath stopped up.

35. All public rights of way over or along the footpath authorised by this Act to be diverted stopped up or discontinued shall be extinguished as from the date of such diversion stopping up or discontinuance but such footpath shall not be stopped up or discontinued unless and until the new footpath which is by this Act authorised to be substituted therefor is completed to the satisfaction of two justices and is certified by them to be open for public use. Provided that the Company shall before applying to the said justices for their certificate that the said footpath is completed to their satisfaction give seven days' notice in writing of their intention to apply for the same to the road authority of the district in which the footpath is situate.

Extinguishment of rights of way.

36. The Company may hold and may use and appropriate for the general and other purposes connected with their undertaking the following lands which have already been acquired by them or on their behalf and are delineated on plans signed in duplicate by the Right Honourable Arthur Baron Stanmore the Chairman of the Select Committee of the House of Lords to whom the Bill for this Act was referred of which plan one copy has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments in the House of Lords. Provided that the said lands so already acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section. The lands above referred to and by this section authorised to be held used and appropriated are as follows:—

Company may hold certain lands already acquired.

In the county of Chester—

Certain lands in the borough of Dukinfield on the south side of the railway of the Company from Guide Bridge

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to Hyde Junction lying to the east of Astley Street and the north of Platt Street in the said borough formerly belonging to Abel Buckley Wimpenny :

In the county of Lancaster—

Certain lands in the borough of Bootle situate on the northerly side of Lower Bank View easterly side of Regent Road and westerly side of Lower Mersey View formerly belonging to the Right Honourable Frederick Arthur Earl of Derby K.G. ;

Certain other lands in the township of Audenshaw and parish of Ashton-under-Lyne abutting upon the south side of the railway of the Company from Fairfield to Guide Bridge being the field numbered 143 on the Ordnance map for the county of Lancaster scale $\frac{1}{2500}$ sheet No. CV. 10 first edition dated 1894 formerly belonging to Emma Teresa Keon and others :

In the county of Lincoln (parts of Lindsey)—

Certain lands in the parish of Goxhill abutting upon the south side of the railway of the Company from Thornton Abbey to Goxhill and adjoining the public road from Littleworth to Barrow formerly belonging to James Parritt being part of the field numbered 708 upon the Ordnance map for the county of Lincoln (parts of Lindsey) sheet VII. 12 dated 1887 :

In the county of York (west riding)—

Certain lands in the borough of Rotherham situate on the south-westerly side of Wortley Road opposite Twigg Street and abutting upon a proposed new street leading from Kimberworth Road to Wortley Road formerly belonging to Rose Hannah Gill :

And the expenditure of money by the Company in or about the purchase of the said lands is hereby sanctioned and confirmed.

Period for
completion
of railways.

37. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Railway de-
posit fund
not to be re-

38. Whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum

of eight hundred and twenty-five pounds two and a half per cent. consolidated stock (hereinafter referred to as "the railway deposit fund") being equal to five per centum upon the amount of the estimate in respect of the railway and a sum of one thousand seven hundred and eighty-eight pounds two and a half per cent. consolidated stock (hereinafter referred to as "the works deposit fund") being equal to five per centum upon the estimate in respect of the works for the widening of railway and four per centum upon the estimate in respect of the works for the dock road sea wall and marine lake by this Act authorised have respectively been transferred into the name of the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for this Act. Be it enacted that notwithstanding anything contained in the said Act the said railway deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Act for completion of the railway open the same for public traffic and if the Company shall make default in so opening the railway the railway deposit fund shall be applicable and shall be applied as provided by the next following section. Provided that if within such period as aforesaid the Company open any portion of the railway for public traffic then on the production of a certificate of the Board of Trade specifying the length of the portion of the railway opened as aforesaid and the portion of the railway deposit fund which bears to the whole of the railway deposit fund the same proportion as the length of the railway so opened bears to the entire length of the railway the High Court shall on the application of the depositors order the portion of the railway deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

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—
paid except
so far as
railway
opened.

39. If the Company do not previously to the expiration of the period limited for the completion of the railway complete the same and open it for public traffic then and in every such case

Application
of railway
deposit fund.

A.D. 1905. — the railway deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement, construction or abandonment of the railway or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit and if no such compensation is payable or if a portion of the railway deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the railway deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the undertaking has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the depositors. Provided that until the railway deposit fund has been repaid or re-transferred to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors.

Release of
works de-
posit fund.

40. On the application of the depositors in a summary way at any time after the passing of this Act the High Court may and shall order that the works deposit fund of one thousand seven hundred and eighty-eight pounds two and a half per cent. consolidated stock and the interest and dividends thereon shall be transferred and paid to the depositors or to any other person or persons whom the depositors may appoint in that behalf.

Saving
rights of
Crown.

41. Nothing in this Part of this Act shall affect prejudicially any estate right power privilege or exemption of the King's most Excellent Majesty and in particular nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the

Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose which consent such Commissioners and such Board are hereby respectively authorised to give. A.D. 1905.

42. The Company may maintain and use as part of their undertaking for all purposes the junction curve railway and the works connected therewith already constructed by the Company in the parish and urban district of Willesden in the county of Middlesex connecting the railway of the Company with the Midland and London and South Western Junction Railway commencing by a junction with the Neasden sidings of the Company on the eastern side of Dog Lane Neasden and terminating by a junction with the Midland and London and South Western Junction Railway at Neasden: Sanctioning
junction
curve rail-
way con-
structed at
Neasden.

Provided that nothing in this section contained shall prejudice or affect the terms and conditions of the agreement dated the twenty-fourth day of February one thousand eight hundred and ninety-nine made between the Company of the first part and the Midland and London and South Western Railway Companies of the second part relating to the construction and use by the Company of the said junction curve railway.

PART III.

NEW WORKS AND ADDITIONAL LANDS FOR CHESHIRE LINES COMMITTEE.

43. Subject to the provisions of this Act the Cheshire Lines Committee (in this Part of this Act called "the committee") may for the purposes of and connected with their undertaking enter upon take use and appropriate all or any of the lands hereinafter mentioned delineated on the deposited plans and described in the deposited books of reference and may hold for all the purposes of their undertaking such of those lands as have already been acquired. Provided that the said lands so already acquired by the committee shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section and the committee may execute the works and exercise the powers hereinafter mentioned and so far as such works are Power to
Cheshire
Lines Com-
mittee to
acquire addi-
tional lands
and execute
works.

A.D. 1905. shown upon the deposited plans and sections in accordance with those plans and sections (that is to say) :—

In the county of Lancaster—

The committee may in the city of Manchester on the south-easterly side of the committee's Manchester central station extend the committee's bridge and station over Great Bridgewater Street for a distance of six yards measured at right angles from the existing bridge parapet :

And the committee may enter upon take use and hold—

Certain lands in the urban district of Stretford adjoining the southerly side of the committee's Manchester and Liverpool Railway and bounded on the west side by Moss Road on the east side by the Bridgewater Canal and on the south side by lands belonging or reputed to belong to Sir Humphrey Francis de Trafford Baronet or the trustees of the de Trafford estates.

Limited owners of lands in Stretford may sell on chief rent.

44. The owners of the lands hereinbefore described in the urban district of Stretford authorised to be taken by the committee may sell and convey the same to the committee in consideration of an annual charge or a chief rent notwithstanding that they are not subject to disability within the meaning of section 2 of the Lands Clauses Consolidation Acts Amendment Act 1860.

Application of funds by Cheshire Lines Committee.

45. The committee may apply for the purposes of this Part of this Act any moneys under their control or at their disposal Provided that any capital moneys shall be applied only to purposes to which capital is properly applicable.

For protection of corporation of Manchester.

46. The following provisions for the protection and benefit of the lord mayor aldermen and citizens of the city of Manchester (in this section called "the corporation") shall unless otherwise agreed between the committee and the corporation be binding upon the committee and full effect shall be given thereto :—

(1) In this section "the signed plan" means the plan signed in duplicate by Thomas Gair Ashton Esquire the Chairman of the Select Committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one

copy in the Office of the Clerk of the Parliaments A.D. 1905.
in the House of Lords :

- (2) Notwithstanding anything shown on the deposited plans or contained in the section of this Act the marginal note whereof is "Power to Cheshire Lines Committee to acquire additional lands and execute works" the widening of the bridge and station over Great Bridge-water Street by this Act authorised (in this section called "the widening of the bridge") shall be constructed in manner shown in red upon the signed plan and shall not extend over that street in a south-easterly direction beyond the line indicated upon the signed plan. The headway of the extended bridge shall in no case be less than that shown upon the signed plan :
- (3) From and after the completion of the widening of the bridge the committee shall between the points M and N on the signed plan set up and affix and maintain lamps at such places as the corporation may reasonably require suitable for such illuminant and with such appliances as the corporation may reasonably prescribe. The lighting both by day as well as by night shall be under the sole control of the corporation and the committee shall pay to the corporation on demand the reasonable annual cost of lighting and keeping lighted such lamps :
- (4) The abutments and walls under the widening of the bridge shall be faced with white glazed bricks and the committee shall maintain and keep cleansed the whole of such facing and the corporation shall be at liberty at the expense of the committee to cleanse such facing in the event of the neglect of the committee to do so :
- (5) The piers or abutments and foundations of the widening of the bridge shall extend and be made below the surface of the ground to such depth below the level of the existing sewers drains water hydraulic gas electric telephonic or other mains pipes works or apparatus belonging to or under the control of the corporation as shall be necessary for the purpose of ensuring the permanent stability of the widening of the bridge and as shall be sufficient to allow the corporation to make and construct repair or relay any sewers drains water hydraulic gas electric telephonic

A.D. 1905.

or other mains pipes works or apparatus which under or by virtue of any Act of Parliament the corporation are authorised to lay down construct and deposit and the foundations for any such piers and abutments shall be constructed according to sections showing the proposed minimum depth thereof to be previously approved by the corporation or in case of difference between the committee and the corporation by an arbitrator to be appointed as hereinafter provided Provided always that if for twenty-eight days from the receipt of any such section the corporation shall fail to signify their approval or disapproval they shall be deemed to have approved thereof and the work shall be carried out accordingly :

- (6) No opening shall be placed in the piers or abutments of the widening of the bridge except at the place of the existing opening into the committee's premises on the south-westerly side of Great Bridgewater Street and the widening of the bridge shall as far as practicable be made and maintained drop dry at all times and kept in repair by the committee :
- (7) In cases where necessary the committee will upon request cause all exposed iron and woodwork of the widening of the bridge to be from time to time painted white or other suitable colour :
- (8) The corporation shall be at liberty to make attachments to the underside of the widening of the bridge for the purposes of electric traction or lighting such attachments to be in all respects subject to the approval of the committee's engineer and to be temporarily removed when required by him in connection with the maintenance reconstruction or alteration of the bridge :
- (9) Before obstructing or breaking up any street in the city under the powers of this Act the committee shall give to the corporation twenty-eight days' notice in writing of the intention to commence such works and the works so far as the same affect such street or road shall be carried out by the committee to the reasonable satisfaction of the corporation and the committee shall make suitable arrangements for fencing lighting and watching to the reasonable satisfaction of the Corpora-

tion and shall maintain such fences and lights to the like satisfaction: A.D. 1905.

- (10) Any difference arising between the corporation and the committee under the foregoing subsections of this section shall be determined by an arbitrator to be appointed failing agreement by the president of the Institution of Civil Engineers on the application of either party after notice to the other:
- (11) The provisions of subsection (3) of this section shall be in lieu and satisfaction of all other existing obligations of the committee relating to the lighting of the highway under the bridge between the points M and N on the signed plan:
- (12) In case of any future application to Parliament for a further extension of the bridge over Great Bridgewater Street provision shall be made (to the reasonable satisfaction of the corporation) for providing sufficient space open to the sky for the purpose of admitting light and air into that street between the then existing bridge and the proposed further bridge extension.

PART IV.

ADDITIONAL LANDS FOR MANCHESTER SOUTH JUNCTION AND ALTRINCHAM RAILWAY COMPANY.

47. Subject to the provisions of this Act the South Junction Company may for the general and other purposes connected with their undertaking enter upon take use and appropriate the lands hereinafter mentioned delineated on the deposited plans and described in the deposited books of reference (that is to say):—

Power to South Junction Company to take additional lands.

In the county of Lancaster—

Certain lands in the parish and urban district of Stretford lying on the north-west side of and adjoining the Manchester South Junction and Altrincham Railway commencing at a point ninety-five yards or thereabouts south-west of the subway at the Cricket Ground Station on that railway and extending along the said railway for a distance of one thousand two hundred and forty yards or thereabouts in a south-westerly direction:

A.D. 1905. And the owners of the said lands may sell and convey the same to the South Junction Company in consideration of an annual rentcharge or a chief rent notwithstanding that they are not subject to disability within the meaning of section 2 of the Lands Clauses Consolidation Acts Amendment Act 1860.

South Junction Company may apply moneys to purposes of this Part of Act.

48. The South Junction Company may apply to the purposes of this Part of this Act any moneys now or hereafter belonging to them Provided that any capital moneys shall be applied only to purposes to which capital is properly applicable.

PART V.

GENERAL PROVISIONS RELATING TO WORKS AND LANDS.

Period for compulsory purchase of lands.

49. The powers of the Company the Cheshire Lines Committee and the South Junction Company respectively for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Persons under disability may grant easements &c.

50. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company the Cheshire Lines Committee and the South Junction Company respectively any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

For protection of gas and water mains of local authorities.

51. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Underpinning of houses.

52. And whereas in order to avoid in the construction and maintenance of any works authorised by this Act injury to the

houses and buildings within one hundred feet of the railways and works authorised by this Act it may be necessary to underpin or otherwise strengthen the same. Therefore the Company or the Cheshire Lines Committee as the case may be (in this section respectively referred to as "the Company") at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

A.D. 1905.

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company:
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade:
- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building:
- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:

A.D. 1905.

- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act :
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts :
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

PART VI.

EXTENSIONS OF TIME.

Extension of time for widening main line between Gorton and Hyde Junction.

53. The time limited by section 49 of the Act of 1903 for the widening and improvement of the main line of the Company between Gorton and Hyde Junction authorised by the Manchester Sheffield and Lincolnshire Railway (Additional Powers) Act 1866 and described in subsection (1) of section 4 of that Act is hereby extended for a period of two years from the fourteenth day of June one thousand nine hundred and five and on the expiration of that period the powers for the execution of the said works shall cease except as to so much thereof as is then completed.

Extension of time for completion of Wirral Railway Works.

54. The time limited by section 50 of the Act of 1903 for the completion of the railways authorised by the Wirral Railway Certificate 1883 (other than the railways and portion of railway

by the Wirral Railway Act 1888 directed to be abandoned) and also of the railways authorised by the Wirral Railway Act 1884 and the Wirral Railway Act 1888 is hereby further extended for a period of two years from the first day of July one thousand nine hundred and five and on the expiration of that period the powers for the construction of the said railways shall cease except as to so much thereof as is then completed:

Provided that the said railways shall except so much thereof as is situate between the proposed Borough Road Station on the said railways and the junctions of the said railways with the North Wales Railway of the Company be so constructed as to admit of the traffic thereon being worked by means of electrical traction on the same system as that in use on the railway of the Mersey Railway Company and such traffic shall not be worked by steam locomotives:

Provided also that in the event of the traffic on the said railways being worked by means of electrical traction the provisions of section 16 of the Mersey Railway Act 1900 for the protection of the Postmaster-General shall apply to the said railways and to the Company in relation thereto as if the said provisions had been expressly enacted in this Act with reference to the said railways.

55. The time limited by section 52 of the Act of 1903 for the completion of the Railway No. 1 authorised by and described in section 5 of the Act of 1898 except for so much of that railway as lies between points respectively marked four miles and four chains and five miles five furlongs and two chains from the commencement of that railway on the plans deposited with reference to the Act of 1898 is hereby extended for a period of two years from the twelfth day of August one thousand nine hundred and five and the time limited by section 28 of the Act of 1900 for the completion of the alteration of lines and levels of a portion of Railway No. 1 authorised by the Act of 1898 and described in section 5 of the Act of 1900 is also hereby extended until the expiration of the said period and on the expiration of that period the powers for the construction of the said railway and the said alteration of lines and levels shall cease except as to so much thereof as is then completed.

Extension of
time for com-
pletion of
Railway
No. 1 autho-
rised by Act
of 1898.

56. The time limited by section 47 of the Act of 1903 for the compulsory purchase of lands required for the diversion of the road authorised by and described in section 43 of the Act

Extension of
time for com-
pulsory pur-
chase of

lands re-
quired for
road diver-
sion autho-
rised by Act
of 1900.

of 1900 is hereby extended for a period of two years from the twenty-fifth day of June one thousand nine hundred and five and on the expiration of that period the powers of the said Company for the compulsory purchase of those lands shall cease.

Extension of
time for com-
pletion of
railways and
road autho-
rised by Act
of 1901 and
for abandon-
ment of exist-
ing railway.

57. The times limited by sections 7 and 27 of the Act of 1901 for the completion of the railways and new road authorised by and described in section 5 of that Act and the time limited by the said section 7 for the abandonment of the portion of the Great Coates branch railway authorised and required to be abandoned by section 10 of that Act are hereby extended for a period of two years from the twenty-sixth day of July one thousand nine hundred and five and at the expiration of that period the powers for the completion of the said railways and road shall cease except as to so much thereof as is then completed :

Provided always that nothing herein contained shall prejudice or affect the rights and interests of Sir Walter Gilbey Baronet or other the owner for the time being of the lands referred to in the said section 7 or of the Company either under that section or under any existing agreement between the Company and the said Sir Walter Gilbey with respect to the subject matter of that section.

Extension of
time for com-
pulsory pur-
chase of
lands for pur-
poses of Act
of 1902.

58. The time limited by section 12 of the Act of 1902 for the compulsory purchase of lands required for Railways Nos. 3 4 and 5 described in and authorised by section 5 of that Act is hereby extended for a period of two years from the twenty-second day of July one thousand nine hundred and five and at the expiration of that period those powers shall cease.

Extension of
time for com-
pulsory pur-
chase of
lands in
Liverpool
authorised by
Cheshire
Lines Act
1900.

59. The time limited by section 25 of the Cheshire Lines Act 1903 for the compulsory purchase of the additional lands in Renshaw Street Cropper Street Newington Lawton Street and Heathfield Street in the parish and city of Liverpool authorised by and described in section 8 of the Cheshire Lines Act 1900 is hereby extended for a period of two years from the twenty-fifth day of May one thousand nine hundred and five and on the expiration of that period the powers for such compulsory purchase shall cease.

Extending
time for sale
of super-
fluous lands
of Cheshire
Lines Com-
mittee.

60. Notwithstanding anything in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Cheshire Lines Committee with which that Act is incorporated the periods for and within which the Cheshire Lines Committee may hold sell

and dispose of any superfluous lands connected with their railway which have not yet been applied to the purposes for which they were acquired are hereby extended for the periods following (that is to say) As regards such of the said lands as are situate near to or adjoining any railway or station of the Cheshire Lines Committee for the period of ten years from the passing of this Act and as regards the other of the said lands for the period of three years from the passing of this Act but the Cheshire Lines Committee shall at the expiration of those respective periods sell and absolutely dispose of as superfluous lands all such parts of those lands as shall not then have been applied to or are not then required for the purposes of their undertaking.

A.D. 1905.

61. Notwithstanding anything in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Great Central and Midland Joint Committee with which that Act is incorporated the periods for and within which that committee may hold sell and dispose of any superfluous lands connected with their railway which have not yet been applied to the purposes for which they were acquired are hereby extended for the periods following (that is to say) As regards such of the said lands as are situate near to or adjoining any railway or station of the Great Central and Midland Joint Committee for the period of ten years from the passing of this Act and as regards the other of the said lands for the period of three years from the passing of this Act but the Great Central and Midland Joint Committee shall at the expiration of those respective periods sell and absolutely dispose of as superfluous lands all such parts of those lands as shall not then have been applied to or are not then required for the purposes of their undertaking.

Extending time for sale of superfluous lands of Great Central and Midland Joint Committee.

PART VII.

TRANSFER OF WIGAN JUNCTION RAILWAYS AND LIVERPOOL ST. HELENS AND SOUTH LANCASHIRE RAILWAY.

62. As on and from the first day of January one thousand nine hundred and six (in this Part of this Act called "the date of transfer") the undertaking of the Wigan Company shall be by virtue of and subject to the provisions of this Act transferred to and vested in the Company from which date the Wigan Company shall be dissolved except for the purpose of winding up their affairs and all the unexercised powers of the Wigan Company of

Transfer of Wigan Company's undertaking.

A.D. 1905. — raising capital by the creation and issue of shares or stock and of raising money by mortgages and debenture stock shall be and the same are hereby extinguished.

Company
liable for
debts of
Wigan Com-
pany.

63. As and from the date of transfer the Company shall hold the undertaking of the Wigan Company subject to the debts liabilities and engagements of the Wigan Company but freed and discharged from all claims and demands whatsoever on the part of the holders of any of the shares or stocks of the Wigan Company except as provided by this Act.

Holders of
Wigan Com-
pany's secu-
rities to be-
come holders
of securities
of Company.

64. As and from the date of transfer the several holders other than the Company of the several shares stocks and securities of the Wigan Company shall in lieu of and in exchange for the shares stocks or securities held by them respectively become and be the holders of respective stocks and securities of the Company to the amount and in the proportions hereinafter mentioned (namely) :—

(1) Each such holder of existing debenture stock of the Wigan Company shall in lieu of and in exchange for such stock become and be the holder of such an amount of second debenture stock of the Company as will produce an annual income equal to the annual income derivable from the existing debenture stock of the Wigan Company for which such second debenture stock of the Company is substituted bearing interest from the date of transfer :

(2) Each such holder of one hundred pounds existing ordinary shares of the Wigan Company and so in proportion for a less amount shall in lieu of and in exchange for such shares become and be the holder of forty pounds second debenture stock of the Company thirty pounds preferred ordinary stock and thirty pounds deferred ordinary stock of the Company but the Company may at their option in lieu of allotting and issuing second debenture stock to the holders of existing ordinary shares of the Wigan Company pay to them the same amount in cash :

Provided that the holder of any ordinary shares of the Wigan Company in respect of which calls are unpaid shall in lieu of and in exchange for such ordinary shares become and be the holder of second debenture stock preferred ordinary stock

and deferred ordinary stock of the Company in proportion only to the amount paid up on such ordinary shares instead of in proportion to the nominal amount of such ordinary shares and such exchange shall be deemed to be a discharge to the holder of such ordinary shares of all arrears of calls interest and expenses due in respect of such ordinary shares. A.D. 1905.

65. As from the date of transfer the shares of the Wigan Company held by or on behalf of the Company and specified in the third column of Part I. of the schedule to this Act shall be and the same are hereby cancelled. Cancelling shares of Wigan Company held by Company.

66. As on and from the date of transfer the undertaking of the St. Helens Company shall be by virtue of and subject to the provisions of this Act transferred to and vested in the Company from which date the St. Helens Company shall be dissolved except for the purpose of winding up their affairs and all unexercised powers of the St. Helens Company of raising capital by the creation and issue of shares or stock and of raising money by mortgages and debenture stock shall be and the same are hereby extinguished. Transfer of St. Helens Company's undertaking.

67. As from the date of transfer the Company shall hold the undertaking of the St. Helens Company subject to the debts liabilities and engagements of the St. Helens Company but freed and discharged from all claims and demands whatsoever on the part of the holders of the shares or stocks of the St. Helens Company except as provided by this Act. Company liable for debts of St. Helens Company.

68. As on and from the date of transfer the several holders other than the Company of the several shares stocks and securities of the St. Helens Company shall in lieu of and in exchange for the shares stocks and securities held by them respectively become and be the holders of the respective stocks and securities of the Company to the amount and in the proportions hereinafter mentioned (namely) :— Holders of St. Helens Company's securities to become holders of securities of Company.

- (1) Each such holder of existing first and second debenture stock of the St. Helens Company shall in lieu of and in exchange for such respective stocks become and be the holder of such an amount of second debenture stock of the Company as will produce an annual income equal to the annual income derivable from the respective debenture stocks of the St. Helens Company for which such second debenture stock of the Company is substituted :

A.D. 1905.

(2) Each such holder of existing preference shares of the St. Helens Company shall in lieu of and in exchange for every such hundred pounds of such shares and so in proportion for a less amount become and be the holder of thirty-five pounds preferred ordinary stock of the Company :

(3) Each such holder of existing ordinary shares of the St. Helens Company shall in lieu of and in exchange for every hundred pounds of such shares and so in proportion for a less amount become and be the holder of twenty pounds deferred ordinary stock of the Company :

Provided that the holder of any ordinary shares of the St. Helens Company in respect of which calls are unpaid shall in lieu of and in exchange for such ordinary shares become and be the holder of deferred ordinary stock of the Company in proportion only to the amount paid up on such ordinary shares instead of in proportion to the nominal amount of such ordinary shares and such exchange shall be deemed to be a discharge to the holder of such ordinary shares and all arrears of calls interest and expenses due in respect of such ordinary shares.

Cancelling
shares of St.
Helens Com-
pany held
by Company.

69. As from the date of transfer the shares of the St. Helens Company held by or on behalf of the Company and specified in the third column of Part II. of the schedule to this Act shall be and the same are hereby cancelled.

Substituted
stock to be
held on same
trusts as
stock &c. for
which it is
substituted.

70. All stock of the Company issued to holders of shares or stocks in the capitals of the Wigan Company or the St. Helens Company under the powers of this Act shall be held subject to the same trusts and obligations as those upon or to which the shares or stocks in the capitals of the Wigan Company and the St. Helens Company respectively in respect of which such stock is substituted were immediately before the date of transfer held or subject and so as to give effect to and not revoke any deed or other instrument or any testamentary disposition of or affecting any such shares or stocks in the capitals of the Wigan Company and the St. Helens Company respectively and every deed or other instrument or testamentary disposition of or affecting such shares or stocks shall take effect with reference to the whole or a proportionate part of the stock so substituted therefor as the case may be.

71. On and after the respective dates named in the sections of this Act whereof the marginal notes are respectively "Holders of Wigan Company's securities to become holders of securities of Company" and "Holders of St. Helens Company's securities to become holders of securities of Company" every holder of shares or stocks in the capitals of the Wigan Company and the St. Helens Company respectively in exchange for which any cash or any stock of the Company is to be paid or issued under this Act shall upon the delivery of the certificates for the same to the Company receive instead thereof from the Company certificates of the respective stocks of the Company to which such holder is entitled under the provisions of this Act and the certificates with respect to the shares or stocks in the capitals of the Wigan Company and the St. Helens Company respectively shall upon such exchange be cancelled.

A.D. 1905.
Certificates
of shares &c.
to be ex-
changed.

72. If the certificates for any shares or stocks in the capitals of the Wigan Company or the St. Helens Company be lost or destroyed then upon proof thereof and upon an indemnity being given against any claim in respect of such lost or destroyed certificates to the reasonable satisfaction of the directors of the Company the Company shall deliver to the person entitled to such certificates a certificate or certificates for the stock of the Company to which he would be entitled under this Act as if such first-mentioned certificates had been delivered by him as hereinbefore provided.

Provision
as to lost
certificates.

73. Trustees executors and administrators being holders of any shares or stock of the Wigan Company or the St. Helens Company may and shall accept the stock of the Company to be issued under the provisions of this Act to the several holders of the shares or stock of the Wigan Company and the St. Helens Company respectively in substitution for such shares or stock and may and shall hold dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the shares or stock for which such stock of the Company was substituted.

Trustee
shareholders
of Wigan and
St. Helens
Companies
to accept
substituted
stock.

74. After the date of amalgamation the Company shall calculate the maximum rates chargeable in respect of the railways of the St. Helens Company and the Wigan Junction Company as if those railways had formed part of the undertaking of the Company at the date of the passing of the Railway Rates and Charges No. 12 (Manchester Sheffield and Lincolnshire

Rates and
charges on
St. Helens
and Wigan
Junction
Railways.

A.D. 1905. Railway &c.) Order Confirmation Act 1892 and the schedule of maximum rates and charges confirmed by the said Act shall be and continue applicable to the said railways.

Wigan Junction Company to receive revenue and pay debts up to date of transfer.

75. The Wigan Junction Company shall be entitled to all their revenues up to the date of transfer and except as by this Act otherwise provided the said company shall discharge and relieve the Company of all their contracts obligations debts and liabilities not chargeable to capital account which shall have accrued up to the date of transfer.

Application of revenues of St. Helens Company at date of transfer.

76. The St. Helens Company shall be entitled to all their revenues up to the date of transfer and shall apply the same so far as they will extend in the payment of their debts on revenue account and the balance if any shall be paid to the Company.

As to officers of Wigan and St. Helens Companies.

77. Notwithstanding the transfer to and vesting in the Company of the undertakings of the Wigan Company and the St. Helens Company the clerks officers and servants of those companies respectively shall not be or become clerks officers and servants of the Company but the Wigan Company and the St. Helens Company shall respectively discharge all obligations which may be due to such clerks officers and servants respectively or any of them.

Company may issue additional preferred and deferred ordinary stock.

78. On and after the date of transfer the Company may from time to time issue such amounts of preferred and deferred ordinary stock created under the Great Central Railway Act 1897 as may be requisite to comply with the provisions of this Act in respect of the transfer of the undertakings of the Wigan Company and the St. Helens Company respectively.

Company may issue additional second debenture stock.

79. On and after the date of transfer the amount of the three and a half per centum second debenture stock which the Company are by section 30 of the Act of 1900 and section 128 of the Act of 1904 authorised to create and issue shall be increased by addition thereto to the extent necessary to give effect to the provisions of this Act with respect to the following matters (that is to say) :—

For the transfer of the undertakings of the Wigan Company and the St. Helens Company respectively such amount as may be requisite to comply with the provisions of this Act with respect to the exchange of shares stocks and securities of the Wigan Company and the St. Helens Company ;

A.D. 1905.

For the redemption and extinguishment of an annual rent-charge of seven hundred and eighty-two pounds eleven shillings now payable by the Wigan Company the sum of fifteen thousand six hundred and thirty-one pounds ;

For the payment of debts due from the Wigan Company on capital account and for completing the Wigan Railway the sum of twenty-five thousand pounds ;

For redemption and extinguishment of an annual rentcharge of four hundred pounds now payable by the St. Helens Company the sum of ten thousand pounds ;

For the payment off of the Lloyds bonds and other liabilities of the St. Helens Company the sum of seventy thousand pounds :

And the second debenture stock created and issued by the Company in pursuance of this section shall rank *pari passu* with all second debenture stock of the Company created and issued or to be created and issued under the authority of the said section 30 of the Act of 1900 and section 128 of the Act of 1904 and shall be deemed for all purposes to have been authorised by the Act of 1900.

80. Notwithstanding anything in this Act contained no shareholder of the Wigan Company or the St. Helens Company shall become entitled under this Act to any fractional part of ten pounds of the preferred ordinary stock or the deferred ordinary stock of the Company but in every case in which such shareholder would but for this enactment have become entitled to a fractional part of ten pounds of either of such stocks the Company may at their option receive from such shareholder such a further sum in cash as will make up according to the value of such stock as appearing in the last market quotations in *The Times* newspaper prior to the date of transfer an even ten pounds of stock or pay to such shareholder in cash the value to be ascertained in the same manner as such fractional part.

Fractional parts of ten pounds of preferred and deferred ordinary stock.

81. Notwithstanding anything in this Act contained no person shall become entitled under this Act to any fractional part of a pound of the second debenture stock of the Company but in every case in which any such person would but for this enactment have become entitled to a fractional part of a pound of such stock the Company may at their option receive from such person such a further sum in cash as will make up an even pound or pay to such person in cash the amount of such fractional part.

Fractional parts of a pound of second debenture stock.

A.D. 1905.
—
Saving for
Postmaster-
General.

82. Nothing in this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across such of the railways and works comprised in the undertakings of the Wigan Company and the St. Helens Company as may have been authorised by an Act of Parliament passed since the first day of January one thousand eight hundred and seventy-eight and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in the said undertakings for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights aforesaid notwithstanding that the undertakings of the Wigan Company and the St. Helens Company are transferred to or worked by the Company as freely and fully in all respects as he was entitled to do before the passing of this Act.

For pro-
tection of
Midland
Railway
Company.

83. The Company shall afford to the Midland Railway Company all such facilities including through rates and fares for merchandise and passenger traffic and through waggons for merchandise traffic passing or seeking to pass between on the one hand stations and places on or beyond the respective undertakings of the Wigan Company and the St. Helens Company and on the other hand places on or beyond the Midland Railway as have heretofore obtained between the Wigan Company and the St. Helens Company and the Midland Railway Company.

PART VIII.

GREAT CENTRAL AND LONDON AND NORTH WESTERN RAILWAYS JOINT COMMITTEE.

Further
interpre-
tation.

84. In this Part of this Act unless the subject or context otherwise requires—

“The Company” means the Great Central Railway Company;

“The North Western Company” means the London and North Western Railway Company;

“The two companies” means the Company and the North Western Company;

“The joint committee” means the Great Central and North Western Railways Joint Committee incorporated by this Act;

“The Oldham Company” “the Oldham Committee” and “the Oldham Railway” mean respectively the Oldham

Ashton-under-Lyne and Guide Bridge Junction Railway Company the Oldham Railway Committee appointed under section 26 of the Oldham Ashton and Guide Bridge Junction Railway Leasing Act 1862 and all the railways and works and all the lands tenements and hereditaments stations approaches and conveniences connected therewith and all other the property estate and effects fixed or movable belonging to or authorised to be constructed or acquired by the Oldham Company ;

A.D. 1905.

“The South Junction Company” and “the South Junction Railway” mean respectively the Manchester South Junction and Altrincham Railway Company and all the lands tenements and hereditaments stations approaches and conveniences connected therewith and all other the capital property estate and effects fixed and movable belonging to or authorised to be constructed or acquired by the South Junction Company ;

“The London Road Station Committee” and “the London Road Station” mean respectively the committee of management of the London Road Station appointed in pursuance of section 6 of the Manchester London Road Station Act 1859 and the London Road Station at Manchester belonging to the two companies ;

“The Stalybridge Committee” and “the Stalybridge Station” mean respectively the Stalybridge Committee appointed in pursuance of section 49 of the London and North Western Railway Act 1878 and any agreement made under the powers of that Act and the station at Stalybridge belonging to the two companies ;

“The joint undertaking” means the Oldham Railway the South Junction Railway the London Road Station and the Stalybridge Station and all other the railways works stations lands tenements hereditaments and conveniences connected therewith as the same shall be regulated managed and controlled by the joint committee under the powers of this Act.

85. For the purpose of exercising the powers and discharging the functions conferred upon them under this Part of this Act there shall be a joint committee as by this Act constituted representing the Company and the North Western Company and the said joint committee shall be called “the

Name and incorporation of joint committee.

A.D. 1905. Great Central and North Western Railways Joint Committee" and by that name the members for the time being of the joint committee shall be one body corporate and are by this Act incorporated accordingly with perpetual succession and a common seal.

Transfer of powers to joint committee and dissolution of existing committees and board.

86. From and after the passing of this Act all the powers rights and privileges duties liabilities and obligations of the Oldham Committee the South Junction Company the London Road Station Committee and the Stalybridge Committee respectively with respect to the management regulation control maintenance and repair of the Oldham Railway the South Junction Railway the London Road Station and the Stalybridge Station respectively and the appointment of officers clerks and servants and the making of byelaws and regulations and all fixed and movable property and effects belonging to the said committees and the South Junction Company respectively shall be and the same are hereby transferred to and vested in the joint committee for the purposes of this Act and thereupon the Oldham Committee the board of directors of the South Junction Company the London Road Station Committee and the Stalybridge Committee shall cease to act and are dissolved.

Two companies may add to joint undertaking.

87. The two companies may by writing under their respective seals appoint any other railways works stations lands or properties now or hereafter jointly owned or managed by the two companies to be added to and form part of the joint undertaking.

Powers of joint committee.

88. The joint committee shall enjoy exercise and put in force all the rights powers and duties for the management regulation control maintenance and repair of the joint undertaking to all and the same extent as the same might have been exercised and put in force by the Oldham Committee the South Junction Company the London Road Station Committee and the Stalybridge Committee respectively but for the passing of this Act except in so far as those rights powers and duties are inconsistent with or are expressly varied or superseded by the rights powers and duties of the joint committee as defined in this Act.

Constitution appointment number and votes of joint committee.

89. The joint committee shall consist of three of the directors of the Company and three of the directors of the North Western Company to be nominated in writing under the seal of the respective companies the first nomination to be made within four months after the passing of this Act but the boards of the two

companies may by mutual agreement increase the number of the joint committee to not more than five directors of each company and the chairman of the joint committee at each meeting shall be alternately a director of one of the two companies and shall have only one vote and not a casting vote and in case of difference arising between the representative directors of the respective companies such difference shall be referred to and decided by arbitration as hereinafter provided. A.D. 1905

90. Each of the two companies may from time to time at their pleasure by writing under their respective seals remove all or any of the members of the joint committee nominated by them respectively as aforesaid and may in like manner fill up any vacancies occurring in the joint committee by removal death disqualification or resignation and any informality in the nomination of a member of the joint committee shall not invalidate any acts done by the joint committee previously to the discovery of such informality and the omission of either company to supply vacancies in the joint committee shall not invalidate the acts of the committee. Vacancies on joint committee.

91. The joint committee shall hold its meetings at such place as it may from time to time determine and four shall be a quorum thereof provided each company is represented. Quorum of joint committee.

92. Subject to the provisions of this Act and so far as applicable the provisions of the Companies Clauses Consolidation Act 1845 shall apply to the joint committee as if the joint committee were a company and in the application of the said Act to the joint committee the members of the joint committee shall be deemed to be directors of a company. Application of Companies Clauses Act 1845 to joint committee.

93. The following provisions shall unless otherwise agreed in writing between the two companies apply to the conduct of the business of the joint undertaking (that is to say) Under the instructions of the general managers of the two companies a committee of officers of the two companies shall be formed and shall meet periodically to confer upon the business of the joint undertaking and supervise the same subject to the control of the joint committee The minutes of all such conferences shall be submitted for confirmation to the next following meeting of the joint committee The recommendations and instructions of such conference (subject to confirmation by the joint committee) shall be carried out by officers clerks and servants to be approved by the joint committee Provided that each of the two companies may at any station on the joint undertaking appoint its own Conduct of business of joint undertaking.

A.D. 1905. — booking and invoicing clerks and parcels carting and canvassing staff and accommodation for such clerks and staff shall be provided by the joint committee or by each company as in case of difference shall be determined by arbitration. Provided also that the accounts of the joint committee shall be open to the inspection of the accountants of either of the two companies and of their respective agents at all reasonable times.

Joint committee to regulate traffic.

94. The joint committee shall regulate the trains which the two companies and each of them may from time to time run and the traffic generally on the railways and stations of the joint undertaking.

Payments to joint committee.

95. The two companies when required in writing by the joint committee under the hand of their secretary shall from time to time make payments or advances to the joint committee in equal proportions and the said secretary shall in making such requisition specify the part or parts of the joint undertaking for which such payments or advances are required.

Differences between two companies and standing arbitrator.

96. In case of difference between the two companies under the provisions of this Part of this Act the same shall be settled by arbitration and if not otherwise agreed by the arbitration of a standing arbitrator to be appointed by the two companies within one month after the appointment of the joint committee and thereafter annually in the month of November in each year or from time to time as a vacancy may occur by death or resignation or incapacity and if at any time the two companies shall fail to agree in appointing a standing arbitrator within any month by this Act prescribed for such appointment or in case of a casual vacancy within one month after such vacancy shall have occurred the standing arbitrator shall be a person appointed in that behalf for the remainder of the then current year by the Board of Trade on the application of either of the two companies.

Two companies to have equal rights of using joint undertaking.

97. Subject to the provisions of this Act and of the Acts relating to the several parts of the joint undertaking each of the two companies shall have the right to use all parts of the joint undertaking as fully and freely as if they formed part of the respective undertakings of those companies.

As to further expenditure on joint undertaking.

98.—(1) If at any time hereafter further accommodation on the joint undertaking be rendered necessary by the growth of traffic or otherwise the same shall be provided by the joint committee at the cost of the two companies and such cost shall be borne by the two companies in equal shares.

A.D. 1905.

(2) If either of the two companies fail to pay any call under this section at the time appointed by the joint committee for the payment thereof the company in default shall (without prejudice to any other rights of the joint committee against such company) pay to the joint committee interest at the rate of five pounds per centum per annum upon the amount of the call from the time so appointed until payment thereof.

(3) If any difference shall arise between the two companies as to the necessity for any such additional accommodation such difference shall unless otherwise agreed be referred to and determined by the standing arbitrator who shall have power to determine by whom the expense of providing any such additional accommodation shall be defrayed and if by both companies in what proportions.

99. No action suit bill process writ indictment information or other proceeding whether civil or criminal which at or immediately before the passing of this Act is commenced and pending either at the suit or instance of or against the two companies or either of them or the Oldham Committee the South Junction Company the London Road Station Committee or the Stalybridge Committee shall abate determine or be otherwise impeached or affected for or by reason of the substitution of the joint committee for the said committees and the board of the said company nor shall any notice tender requisition warrant summons pleading civil or criminal writ or other process record deed contract agreement writing or instrument hereafter to be made issued written or commenced be deemed to be vacated discharged invalidated prejudiced or affected by reason of the joint committee having been substituted for the said committees and the South Junction Company.

Actions &c.
not to abate.

PART IX.

MISCELLANEOUS.

100. The powers conferred upon the Company by section 56 (Power to lease lands over and adjoining railways of Company) of the Act of 1903 in relation to lands then already acquired by the Company shall mutatis mutandis extend and apply to lands acquired by the Company under the powers of this Act but so that the period of thirty years referred to in subsection (2) of the said section shall with respect to such last-mentioned lands be calculated as from the date of the passing of this Act.

Power to
lease lands.

A.D. 1905.

Amendment
of Com-
pany's Acts
as to deposit
funds.

101. Whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 certain sums were transferred into the name of the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for the Great Central Railway Acts 1900 1901 1902 and 1903 in this section mentioned and were in each of the said Acts referred to respectively as "the deposit fund":

And whereas it was enacted by the said Great Central Railway Acts that the said deposit funds should not be paid or transferred to or on the application of the depositors unless the Company previously to the expiration of the periods respectively limited by the said Great Central Railway Acts for the completion of the railways authorised by the said Great Central Railway Acts opened the same for the public conveyance of passengers:

And whereas the railways so authorised were intended for goods and mineral traffic and the Company have in pursuance of the said Acts constructed and opened the said railways for public traffic of goods and minerals but the said railways are not intended to be used for the public conveyance of passengers:

Be it therefore enacted that with respect to the railways hereinafter mentioned the sections of the Great Central Railway Acts hereinafter mentioned shall be read and have effect as if the words "for public traffic" were inserted therein in place of the words "for the public conveyance of passengers" wherever the last-mentioned words occur (that is to say):—

Great Central Railway Act.	Sections amended.	Railways to which Section as amended applies.
1900	20 and 21	Railway No. 3. Widenings Nos. 1 2 3 and 4.
1901	28 and 29	Railways Nos. 2 3 4 5 6 7 and 8.
1902	14 and 15	Railways Nos. 3 4 and 5.
1903	25 and 26	Railway No. 4.

As to road
diversion
at Sprot-
borough
authorised by
Great Cen-
tral Rail-
way Act
1904.

102. Notwithstanding anything contained in section 27 of the Act of 1904 the works referred to in that section shall be constructed in accordance with the plan signed in duplicate by Charles Arthur Rowlandson on behalf of the Company and by F. E. Nicholson on behalf of the Doncaster Rural District Council and by the Right Honourable Arthur Baron Stanmore the Chairman of the Select Committee of the House of Lords to whom the Bill for this Act was referred in lieu of the plan

referred to in that section one copy of which first-mentioned plan has been deposited in the Office of the Clerk of the Parliaments in the House of Lords and one copy in the Private Bill Office of the House of Commons and the said section 27 shall be read and have effect accordingly. A.D. 1905.

103. If the exercise of any of the powers by this Act conferred upon the Company or for which an extension of time is by this Act authorised involves the removal or alteration of any post office letter box situate elsewhere than upon the Company's property the Company shall not remove or alter such box but shall give notice to the Postmaster-General of the removal or alteration required and the Postmaster-General shall remove or alter the box as he may think fit and the Company shall pay to the Postmaster-General all expenses incurred by him in relation to such removal or alteration. As to alteration of post office letter boxes.

104. And whereas doubts have arisen whether the Company are entitled by virtue of the transfer of the undertaking of the Wrexham Mold and Connah's Quay Railway Company to the Company authorised by the Act of 1904 to appoint two members of the Dee Conservancy Board as representatives of the said Wrexham Mold and Connah's Quay Railway Company in addition to the two members which the Company are by section 9 of the Dee Conservancy Act 1889 authorised to appoint to the said Board Be it therefore enacted that the Company may as successors in title to the Wrexham Mold and Connah's Quay Railway Company and owners of the undertaking of that company appoint two members of the Dee Conservancy Board in addition to any other members of the said board appointed by the Company and the Company shall have and enjoy with respect to the Dee Conservancy Board all the rights and privileges enjoyed by the Wrexham Mold and Connah's Quay Railway Company before the passing of the Act of 1904. Representation of Company on Dee Conservancy Board.

105. The Company may apply for the purposes of this Act which they are by this Act authorised to carry into execution and to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by shares or mortgage or debenture stock and which may not be required for the purposes for which the same were authorised to be raised. Power to Company to apply funds to purposes of Act.

106. Notwithstanding anything in the Humber Dock Acts or in any Act or Acts incorporated therewith the Humber Power to Humber Company to

A.D. 1905. pay interest
out of capital
during con-
struction. Company may out of any money by the Humber Dock Acts authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors of the Humber Company may determine to any holder of shares or stock in the capital of the Humber Company on the amount from time to time paid up on the shares or stock held by him from the respective times of such payments until the expiration of the time limited by the Humber Dock Act 1904 for the completion of the dock and works by that Act authorised or such less period as the directors of the Humber Company may determine but subject always to the conditions hereinafter stated (that is to say) :—

(A) In respect of the first three hundred thousand pounds in the capital of the Humber Company no such interest shall begin to accrue until the Humber Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Humber Company that two thirds at least of the said three hundred thousand pounds in the shares or stock of the capital authorised by the Humber Dock Acts has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same and in respect of each further amount of two hundred and fifty thousand pounds in the capital of the Humber Company no interest shall begin to accrue until the Humber Company shall have deposited with the Board of Trade a further statutory declaration by two of the directors and the secretary of the Humber Company that two thirds at least of such further amount has been issued and accepted as aforesaid Provided always that the said first-mentioned statutory declaration shall be deemed to have been duly deposited notwithstanding that the same may have been in fact deposited before the passing of this Act :

(B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :

(C) The aggregate amount to be so paid for interest shall not exceed one hundred and twenty thousand pounds being twenty-eight thousand pounds in respect of the

first three hundred thousand pounds of capital and twenty-three thousand pounds in respect of each further two hundred and fifty thousand pounds of capital and the amounts so paid shall not be deemed capital in respect of which the borrowing powers of the Humber Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid :

A.D. 1905.
—

(D) Notice that the Humber Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Humber Company inviting subscriptions for shares or stock to be issued under the powers of the Humber Dock Acts and in every certificate of shares or stock :

(E) The half-yearly accounts of the Humber Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Humber Company are by the Humber Dock Acts or any other Act authorised to raise to any holder of shares or stock of the Humber Company on the amount of the calls made in respect of his shares or the amount paid up in respect of his stock as the case may be but nothing in this Act shall prevent the Humber Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

107. Section 83 of the Humber Dock Act 1901 and section 40 of the Humber Dock Act 1904 are hereby repealed but so that the validity of any act done or purporting to be done or payment made or purporting to be made by the Humber Company under the said sections or either of them prior to the passing of this Act shall not be hereby affected or diminished.

Repeal of existing provisions as to payment of interest out of capital by Humber Company.

108. When any sum not less than three hundred thousand pounds of the capital of the Humber Company shall have been subscribed under contract binding the parties thereto their heirs executors and administrators for the payment of the several sums in such portion of capital by them respectively subscribed it shall be lawful for the Humber Company to put in force the powers of the Humber Dock Acts in relation to the compulsory

Portion of capital to be subscribed before compulsory powers put in force.

A.D. 1905. — taking of land and such sum shall be deemed to be the prescribed sum for the purposes of section 17 of the Lands Clauses Consolidation Act 1845.

Saving
rights of
Duchy of
Lancaster.

109. Nothing contained in this Act shall extend or operate to authorise the Company to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the chancellor for the time being of the said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy.

Deposits for
future Bills
not to be
paid out of
capital.

110. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision as
to general
Railway
Acts.

111. Nothing in this Act contained shall exempt the companies or committees named in this Act or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act.

Costs of Act.

112. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A.D. 1905.

PART I.

STATEMENT OF CAPITAL OF THE WIGAN JUNCTION RAILWAYS COMPANY.

(1) Description of Capital.	(2) Amount issued.	(3) Amount held by or on behalf of Great Central Railway Company and to be cancelled.	(4) Amount held otherwise than by or on behalf of Great Central Railway Company.
	£	£	£
4 per cent. debenture stock - - -	173,450	—	173,450
3½ per cent. preference shares of £10 each	225,000	225,000	—
Ordinary shares of £10 each - - -	210,000	127,780	82,220*

* Of this amount only £81,780 is paid up the remaining £440 representing calls in arrear.

PART II.

STATEMENT OF CAPITAL OF THE LIVERPOOL ST. HELENS AND SOUTH LANCASHIRE RAILWAY COMPANY.

(1) Description of Capital.	(2) Amount issued.	(3) Amount held by or on behalf of Great Central Railway Company and to be cancelled.	(4) Amount held otherwise than by or on behalf of Great Central Railway Company.
	£	£	£
4 per cent. first debenture stock - - -	110,000	—	110,000
4 per cent. second debenture stock - - -	150,000	—	150,000
4 per cent. guaranteed shares of £10 each	100,000	100,000	—
4 per cent. preference shares of £10 each -	40,000	20,000	20,000
Ordinary shares of £10 each - - -	140,000	—	140,000†

† Of this amount only £139,956 is paid up the remaining £44 representing calls in arrear.

Printed by EYRE and SPOTTISWOODE,

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ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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